

TENTATIVE RULINGS FOR June 16, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

TAYLOR HANOU

V.

RYLIE ATHENA MARTINEZ, et al.

CIVRS2503032

RELEVANT PROCEDURAL/FACTUAL BACKGROUND

I. Complaint and Answer

This is a personal injury action involving a motor vehicle incident. On March 27, 2025, Plaintiff Taylor Hanou filed her Complaint against Defendants Rylie Athena Martinez, Jenny Martinez, and Roland Martinez (collectively, “Defendants” but individually by their first names¹), alleging a single cause of action for: (1) Motor Vehicle.

Plaintiff alleges that Defendants were negligent and that their acts were the cause of injuries and damages to Plaintiff, which occurred on November 2, 2023, at SB on N Campus Avenue or near 1939 N Campus Avenue, Upland, CA 91784. Plaintiff specifically alleges that Defendant Rylie was operating the motor vehicle which collided with Plaintiff’s vehicle; and Defendants Jenny and Martinez owned the motor vehicle involved in the incident and gave their permission to Rylie to drive on the day of the incident. (See Compl., at pp. 3-4.)

On July 15, 2025, Defendants filed their Answer to Plaintiff’s Complaint.

II. Prior hearing in relation to the discovery at issue

¹ “We refer to these related [individuals] by their first names, not out of disrespect, but for purposes of clarity and convenience.” (*Cruz v. Superior Court (Shawn Ayromloo)* (2004) 120 Cal.App.4th 175, 188, fn. 13.)

On March 12, 2026, the Court granted Defendants' Motions to Compel Responses to Form Interrogatories, Special Interrogatories, and Demand for Production of Documents. In addition, the Court in total awarded \$1,056.84 to Defendants and against Plaintiff.

III. Instant Motion

Now at issue before the Court is Defendants' Motion for Order of Terminating and Monetary Sanctions in the amount of \$352.28 on the grounds that Plaintiff did not comply with the previous court orders requiring the service of verified responses to written discovery propounded by Defendants and failure to pay previous monetary sanctions awarded in relation to the motions to compel those responses.

Plaintiff opposes the motion. Defendants do not reply to the opposition.

DISCUSSION

IV. Statement of the Law

Misuses of the discovery process include: "(d) Failing to respond or to submit to an authorized method of discovery[;]" and "(g) Disobeying a court order to provide discovery."

Code of Civil Procedure section 2023.030 states in pertinent part that: "[T]he court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely

affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

(c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.

(d) The court may impose a terminating sanction by one of the following orders:

- (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.
- (2) An order staying further proceedings by that party until an order for discovery is obeyed.
- (3) An order dismissing the action, or any part of the action, of that party.
- (4) An order rendering a judgment by default against that party.

V. Analysis

Defendants state they were forced to move to compel the Plaintiff's responses to her three initial sets of discovery. Once the Court ordered that Plaintiff comply with these discovery obligations, they state that Plaintiff was duty-bound to do so or face the more severe consequences of a terminating sanction. Defendants then argue that when forming appropriate sanctions to combat misuse, courts employ an incremental approach, taking into consideration a party's history of discovery violations and harm caused by the withheld discovery. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 ("Doppes"); *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106.) Defendants further argue that a plaintiff's complete defiance of a court order compelling discovery responses is sufficient to justify terminating sanctions. (*Stein v. Hassen* (1973) 34 Cal.App.3d 294, 301-302.)

In addition to the imposition of terminating sanctions, Defendants request \$352.28 in monetary sanctions against Plaintiff. This amount consists of 1 hour preparing this motion, 1 hour in anticipation to prepare for and appear at the hearing; and at the billing rate of \$146.14 per hour.

It also includes the cost of filing this motion, which is \$60. (Declaration of Christie O. Beard, Esq., at ¶¶ 5-6.)

Plaintiff, in turn, provides her counsel's declaration, attesting that responses were electronically served on June 5, 2026. (Declaration of Mark R. McKinniss, Esq., at ¶ 2.) Plaintiff's counsel further declares that he is a sole practitioner and that health issues and hospitalizations have directly impacted his ability to complete the discovery. (*Id.*, at ¶¶ 3-4.) Additionally, he advises that the monetary sanctions owed have been sent to Defendants' counsel. (*Id.*, at ¶ 5.) Mr. McKinniss then apologizes for the delay in providing the verified responses discovery and represents that he will be available to complete further discovery in the matter. (*Id.*, at ¶¶ 6-7 [Erroneously listed as 76 and 8].) He also requests that the motion for an order of terminating sanctions be denied as the outstanding discovery has been completed, payment of sanctions have been sent to the Defendants' counsel, and the trial date is set for March 29, 2027, which allows them adequate time to complete all necessary written discovery, depositions of the parties, and an IME of Plaintiff. (*Id.*, at ¶ 10 [Erroneously listed as 11].)

Here, given that Plaintiff has complied with the Court's Orders of March 12, 2026, the Court DENIES Defendants' motion as terminating sanctions do not appear appropriate. As Defendants recognize, "[t]he discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination." (*Doppes, supra*, 174 Cal.App.4th 967, 992.) And "[a] decision to order terminating sanctions should not be made lightly." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279.) As to the monetary sanction the Court finds that the circumstances make the imposition of the sanction unjust because Plaintiff's counsel's delay was due to health concerns and Defendants have suffered no prejudice because trial is not set until next year on March 29, 2027.

CONCLUSION

Based on the foregoing, the Court DENIES Defendants' Motion for Order of Terminating and Monetary Sanctions because terminating sanctions are not appropriate as Plaintiff has served verified discovery responses and paid the awarded sanctions at issue. Additionally, the imposition of sanctions is unjust given the circumstances that caused the delay.

Counsel for Plaintiff is ordered to provide notice.

TENTATIVE